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Hearing on Demurrer

Case Name: *JOHN NAVARRO et.al. v. AMANDA NAVARRO*

Case No.: 25CV462727

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Defendant, Amanda Navarro, demurs to the complaint on the grounds that (1) the Court lacks subject matter jurisdiction, and (2) the complaint fails to allege facts sufficient to support a cause of action for intentional infliction of emotional distress. (Notice of Demurrer at 3:5-12)

Defendant's demurrer came on for hearing on September 18, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

I. Factual Allegations

The real property at issue is located at 335 Avenida Nogales, San Jose, California 95123 , APN 464-07-046. ("Subject Property") The Subject Property was originally owned by John Navarro, Sr. and Ramona Navarro. John Navarro, Sr. is the father of Plaintiff John Navarro and Defendant Amanda Navarro. Ramona Navarro is the mother of both parties. Both John Navarro Sr. and Ramona Navarro are now deceased. (Complaint ¶¶ 4, 9)

When Ramona Navarro became ill in April 2024, Defendant told staff at Kaiser Santa Teresa and Vasona Rehabilitation Center that John Navarro and Clemons could not visit Ramona Navarro. Neither plaintiff was permitted to see Ramona before she died. (Complaint ¶ 9)

Defendant engaged in a pattern of forging signatures of both decedents, using fraudulent documents related to the Subject Property, obtaining a guardianship appointment, recording a declaration severing joint tenancy, and creating an invalid will, all to obtain control of the Subject Property and the decedent's assets. (Complaint ¶ 9)

Plaintiffs initiated this action on April 2, 2025, alleging causes of action for (1) intentional infliction of emotional distress, and (2) quiet title.

II. Legal Standard

"The party against whom complaint or cross-complaint has been filed may object, by demurrer or answer as provided in [Code of Civil Procedure] section 430.30, to the pleading on any one or more of the following grounds: . . . (e) The pleading does not state sufficient facts to constitute cause of action, (f) The pleading is uncertain." (C.C.P. § 430.10(e) & (f).)

A demurrer may be used by "[t]he party against whom complaint has been filed" to object to the legal sufficiency of the pleading as whole, or to any "cause of action" stated therein, on one or more of the grounds enumerated by statute. (C.C.P. §§ 430.10 & 430.50(a).)

A demurrer tests the legal sufficiency of the factual allegations in a complaint." (*Redfearn v. Trader Joe's Co.* (2018) 20 Cal. App. 5th 989, 996.) The court must determine "whether the complaint alleges facts sufficient to state a cause of action or discloses a complete defense." (*Ibid.*) The court assumes "the truth of the properly pleaded factual allegations, facts that reasonably can be inferred from those expressly pleaded and matters of which judicial notice has been taken." (*Ibid.*) Whether the plaintiff will be able to prove the pleaded facts is

irrelevant to ruling upon the demurrer. (*Erlach v. Sierra Asset Servicing, LLC*, (2014) 226 Cal. App. 4th 1281, 1291.)

Courts "give the complaint a reasonable interpretation, reading it as a whole and its parts in their context." (*Goncharov v. Uber Techs., Inc.* (2018) 19 Cal. App. 5th 1157, 1165.) Courts "construe the complaint 'liberally ... with a view to substantial justice between the parties[.]'" (*Ibid.*) "A demurrer must dispose of an entire cause of action to be sustained." (*Fremont Indem. Co. v. Fremont Gen. Corp.* (2007) 148 Cal. App. 4th 97, 119.)

Under Code. Civ. Proc. § 430.10(f), a demurrer may also be sustained if a complaint is uncertain i.e., ambiguous and unintelligible. Demurrers for uncertainty are granted only if the pleading is so incomprehensible that a defendant cannot reasonably respond. A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures. (See, *A.J. Fistes Corp. v. GDL Best Contractors, Inc.* (2019) 38 Cal.App.5th 677, 695; internal citation and quotes omitted.)

Even if a demurrer is sustained, leave to amend the complaint is routinely granted under California law. "Liberality in permitting amendment is the rule, if fair opportunity to correct any defect has not been given." (*Angie M. v. Superior Court* (1995) 37 Cal. App. 4th 1217, 1227.) "Unless the complaint shows on its face that it is incapable of amendment, denial of leave to amend constitutes an abuse of discretion, irrespective of whether leave to amend is requested or not." (*McDonald v. Sup. Ct. (Flintkote Co.)* (1986) 180 Cal. App. 3d 297, 303-304.)

III. Preliminary Considerations

In support of their opposition to the demurrer, John Navarro and Emalu Clemons have submitted their declarations with attached exhibits. John Navarro attests to how Defendant submitted allegedly forged documents in the Probate Division to obtain conservatorship of their father; falsely accused him of assault twice in 2020 for one of which he was convicted after trial; isolated their parents from visitations during COVID lockdown and thereafter until their deaths. Emalu Clemons attests to the nature of her relationship with Romana Navarro, the parties' deceased mother.

These declarations are impermissible extrinsic evidence that cannot be considered to resolve the pleading confusion or the demurrer. A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. (*SKF Farms v. Superior Court* (1984) 153 Cal.App.3d 902, 905.) The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action. (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747; *SKF Farms, supra*, 153 Cal.App.3d at 905)

IV. Request for Judicial Notice

Defendant requests judicial notice of the following documents:

- Exhibit 1 – Probate Order appointing Amanda Navarro conservator of the person and estate of John Navarro Sr.. Santa Clara Superior Court case No. 22PR192642.
- Exhibit 2 – Probate Order for substituted judgment to establish revocable trust and execute will of John Navarro Sr.. Santa Clara Superior Court case No. 22PR192642.
- Exhibit 3 – Trust Transfer Deed recorded on October 24, 2022, pertaining to John

- Navarro Sr.'s interest in the Subject Property
- Exhibit 4 – Trust Transfer Deed recorded on March 26, 2024, pertaining to Romana Navarro's interest in the Subject Property
- Exhibit 5 – Affidavit regarding death of trustee - Ramona Navarro - recorded on July 19, 2024.

Defendant's request is GRANTED, IN PART. The existence of these documents may be judicially noticed pursuant to Evid. Code § 452. However, the Court cannot take judicial notice of any hearsay or contested factual assertions within these documents or their legal validity. (See, *Ramsden v. Western Union* (1977) 71 Cal.App.3d 873, 879.)

V. Analysis

The demurrer challenges the complaint on two principal grounds: (1) lack of subject matter jurisdiction because the allegations concern probate matters over which the probate court has exclusive jurisdiction, and (2) failure to state a cause of action for intentional infliction of emotional distress.

A. Subject Matter Jurisdiction

Defendant contends the probate court has exclusive jurisdiction over this matter since Plaintiffs' allegations concern the internal workings of the John Navarro, Sr. Trust, the Ramona Navarro Revocable Trust, the Conservatorship of John Navarro Sr., the actions by Defendant as both the conservator and as the trustee; and the real property owned by both trusts. As such, Defendant asks the Court to dismiss the complaint in its entirety or in the alternative transfer this matter to the probate department. (Demurrer at 7:9-8:20)

Opposing the demurrer, Plaintiffs contend the civil department has concurrent jurisdiction under Probate Code section 17000(b) to address the validity of the John Navarro Sr.'s and Romana Navarro's trusts since Defendant used falsified documents and exerted undue influence to create them. Plaintiffs emphasize that Defendant's acts were committed with the goal to exclude Plaintiff, John Navarro, from partaking of the estates of both of his parents. (Opposition at 2:9-15)

Probate Code section 17000(a) gives the probate department of the relevant superior court exclusive jurisdiction of proceedings concerning the internal affairs of trusts. Probate Code section 17200(b) provides a non-exhaustive list of proceedings that concern the internal affairs of a trust. Broadly speaking, that list may be summarized as a proceeding that pertains to modifying the terms of a trust, changing a designated successor trustee, deviating from trust provisions, determining authority over the trustee's acts, or administering the trust's financial arrangements. (See *Harnedy v. Whitty* (2003) 110 Cal.App.4th 1333, 1345.)

Nonetheless, "even in a county having a formal probate department, a non-probate department does not lack fundamental jurisdiction over a probate matter. Instead, ..., the probate department has 'primary' jurisdiction and a non-probate department 'secondary' jurisdiction of probate-related proceedings. [Citations.]" (*Harnedy, supra*, 110 Cal.App.4th at pp. 1344-1345; Prob. Code, § 17000, subd. (b); see *Capra v. Capra* (2020) 58 Cal.App.5th 1072, 1083-1084 [a superior court has fundamental jurisdiction to try a complaint that alleges causes of action for declaratory relief, conversion, breach of fiduciary duty, constructive trust, trespass to chattel, two counts of fraud and concealment, theft by false pretense, fraud and deceit, and negligent misrepresentation, even where the complaint includes allegations regarding the probate of an estate].)

The *Harnedy* court explained that, in the event a non-probate department entertained a matter within the exclusive jurisdiction of the probate court jurisdiction, that court may be acting "in excess of its jurisdiction," but it did not lack fundamental, or subject matter, jurisdiction over

the matter. (*Harnedy, supra*, 110 Cal.App.4th at pp. 1344-1345; In accord, *Soria v. Soria* (2010) 185 Cal.App.4th 780, 787, fn. 3.) Thus, where an action or proceeding merely involves a trust, trustee, or third parties, the probate department is one authority before which the matter may be litigated. In other words, the probate court's jurisdiction may be concurrent with that of the superior court sitting in civil actions. Accordingly, a third-party claimant may bring an independent civil action, e.g. to quiet title. (See, *Richer v. Superior Court (Cook)* (1976) 63 Cal.App.3d 748, 757 [disapproved on other grounds by *Kowis v. Howard* (1992) 3 Cal.4th 888, 899])

Here the complaint contains two causes of action: (1) intentional infliction of emotional distress, and (2) quiet title. The complaint lists the acts Defendant allegedly committed to intentionally inflict Plaintiffs' emotional distress and to obtain the full ownership of the Subject Property. As such, the complaint seeks damages for emotional distress and a judgment awarding John Navarro and non-party, Frank Navarro Jr., their interest in the Subject Property, which is currently held in two trusts.

The complaint implicates two express trusts, recorded transfers of the property to those trusts, actions taken under a conservatorship order, and Defendant's asserted roles as trustee and former conservator. The judicially noticed materials establish that a probate court authorized Defendant to execute John Navarro, Sr.'s trust and will and to transfer his property interest to the trust. They also show recorded deeds purporting to place each parent's one-half interest in a separate revocable trust.

These facts create a substantial connection to trust administration. To the extent the complaint seeks to set aside the substituted-judgment order, challenge a trustee's authority, invalidate a trust provision, determine beneficiaries under the trusts, or direct the trustee in administering trust assets, those matters fit within the internal-affairs framework described in Probate Code sections 17000 and 17200. Indeed, Plaintiffs expressly acknowledge and concede in their opposition that their claim for quiet title relates to Defendant's actions as conservator and trustee, while arguing that these actions were unlawful. (Opposition at 2:1-3)

However, this conclusion does not establish that the civil department lacks subject matter jurisdiction. Probate Code section 17000(b) expressly gives this Court concurrent jurisdiction over actions involving trustees and third person and proceedings to determine the existence of trust.

Therefore, the relevant question is whether the pleaded claims are actually internal matters of trust administration requiring treatment in the probate proceeding or whether they include a third-party title dispute within concurrent superior court – sitting in civil actions - jurisdiction. The complaint does not expressly seek a declaration invalidating either trust, annulment of the substituted-judgment order, removal of Defendant as trustee, or instructions concerning trust administration. It alleges quiet title on the assertion that Defendant obtained title through forged or invalid documents. This distinction is critical. Such a claim is adverse to Defendant's asserted trustee-held title and is not necessarily limited to supervision of internal administration.

Accordingly, Defendant's demurrer on this ground is OVERRULED.

B. Intentional Infliction of Emotional Distress (“IIED”)

The elements of intentional infliction of emotional distress are (1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff's suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant's outrageous conduct. (*Smith v. BP Lubricants USA Inc.*, (2021) 64 Cal. App. 5th 138, 147.)

Conduct to be outrageous must be so extreme as to exceed all bounds of that usually

tolerated in a civilized community. Behavior may be considered outrageous if a defendant (1) abuses a relation or position which gives him power to damage the plaintiff's interest; (2) knows the plaintiff is susceptible to injuries through mental distress; or (3) acts intentionally or unreasonably with the recognition that the acts are likely to result in illness through mental distress. (*Ibid*)

Defendant challenges Plaintiffs' IIED claim contending it fails to allege sufficient facts establishing outrageous conduct, intent to cause emotional distress, and causation. Defendant emphasizes that her actions were not outrageous since they were taken pursuant to the probate court's order as the conservator and trustee for her parents. (Demurrer at 9:6-22)

The complaint alleges multiple acts by Defendant that Plaintiffs contend constitute IIED: hospital/medical facility access restriction, forgery of Ramona Navarro's name and signature, Forgery of John Navarro Sr.'s name and signature, and financial misconduct. The complaint alleges Defendant instructed medical facility staff not to permit Plaintiffs to visit Ramona Navarro during her final illness, permanently depriving them of the opportunity to see her while alive. In the interim, Defendant forged Ramona Navarro's name and signature to obtain a reverse mortgage and siphon money from her assets. (Complaint ¶ 9)

If adequately pleaded, intentionally isolating a person from a dying parent or a person whose particularly close relationship is known to the defendant could support an inference of conduct exceeding socially tolerated bounds, intent or reckless disregard, and causation. The alleged use of authority or control over access to a vulnerable person may also bear on whether conduct is sufficiently outrageous.

However, the complaint's allegations lack the specificity required to survive demurrer for the following reasons:

1. The complaint does not allege facts establishing why Defendant's instructions to medical staff were improper or unauthorized. It does not allege that Defendant lacked legal authority to control visitation as conservator or trustee. It does not allege the specific dates, locations, or circumstances of the alleged exclusions with sufficient detail. The complaint states that preventing someone from seeing a dying mother "must necessarily constitute extreme and outrageous conduct," but this is a legal conclusion rather than a factual allegation.
2. The complaint's allegations concerning Plaintiff Emalu Clemons are particularly deficient. The Complaint contains no facts concerning Clemons' relationship to the decedent, why Clemons should be allowed to see Ramona Navarro in the hospital, or why preventing her from visiting would be outrageous. While Clemons' inadmissible declaration presents a 52-year friendship with Ramona Navarro and states she lived with her for several years, these facts are not in the complaint itself. On demurrer, the court considers only the face of the pleading.
3. The complaint also alleges a pattern of forging signatures, filing false documents with the court, and other misconduct. However, these allegations are largely pleaded on information and belief without factual support, and many concern actions taken in Defendant's capacity as court-appointed conservator and trustee pursuant to probate court orders. Lawful actions taken pursuant to court authorization, even if they resulted in emotional distress, do not constitute outrageous conduct as a matter of law.
4. The complaint lacks factual allegations describing the nature, severity, or duration of the emotional distress allegedly suffered. Severe emotional distress means distress of such substantial quality or enduring quality that no reasonable person in civilized society

should be expected to endure it. The complaint's conclusory allegation of "extreme emotional distress" is insufficient without factual support.

Accordingly, Defendant's demurrer to the first cause of action is SUSTAINED WITH LEAVE TO AMEND.

C. Quiet Title

Code of Civil Procedure section 761.020 states a complaint for quiet title:

"[S]hall be verified and shall include all of the following: (a) A description of the property that is the subject of the action. In the case of tangible personal property, the description shall include its usual location. In the case of real property, the description shall include both its legal description and its street address or common designation, if any. (b) The title of the plaintiff as to which a determination under this chapter is sought and the basis of the title. If the title is based upon adverse possession, the complaint shall allege the specific facts constituting the adverse possession. (c) The adverse claims to the title of the plaintiff against which a determination is sought. (d) The date as of which the determination is sought. If the determination is sought as of a date other than the date the complaint is filed, the complaint shall include a statement of the reasons why a determination as of that date is sought. (e) A prayer for the determination of the title of the plaintiff against the adverse claims."

(Code. Civ. Proc. § 761.020)

Here, the demurrer does not separately challenge the quiet title cause of action on grounds other than subject matter jurisdiction. As analyzed above, the civil department has concurrent jurisdiction to determine the validity and existence of trusts.

Defendant's reply now raises a new argument that this claim and Frank Navarro Jr.'s role are uncertain. However, "[p]oints raised for the first time in a reply brief will ordinarily not be considered, because such consideration would deprive the respondent of an opportunity to counter the argument." (*American Drug Stores, Inc. v. Stroh* (1992) 10 Cal.App.4th 1446, 1453.)

Moreover, this Defendant's reply does not cure her original demurrer's failure to separately state the applicable ground and identify the cause of action to which it applies. Rule of Court, rule 3.1320(a) requires that specificity. For this reason, the Court cannot sustain the existing demurrer to quiet title for pleading defects not stated.

The Court, nonetheless, acknowledges that this claim is uncertain as it fails to state the basis for John Navarro's claimed interest. The complaint refers to a purported 2004 will – last will and testament of decedent John Navarro Sr. – and Ramona Navarro's intestate interest but does not clearly allege the chain of title, the asserted proportion of ownership, the legal basis for succession, or whether any estate representative, trust, or all person with known recorded claims are parties.

The complaint is also internally inconsistent about party status. The caption identifies John Navarro and Clemons as Plaintiffs, but the quiet title claim and prayer seek affirmative ownership relief for Frank Navarro Jr., who is not a named plaintiff. Clemons is a named plaintiff but is not alleged to hold an ownership interest in the Subject Property. These discrepancies create uncertainty about who asserts title and whether all claimants whose rights Plaintiffs seek to adjudicate are properly before the court.

The Court will permit amendment of this claim should Plaintiffs elect to amend their IIED claim since an amended complaint itself must comply with quiet title pleading requirements and consistently identify all persons asserting or holding an adverse interest.

Accordingly, Defendant's demurrer to the second cause of action for quiet title is

OVERRULED.

VI. Conclusion & Order

Defendant's demurrer to the first cause of action for IIED is SUSTAINED WITH
LEAVE TO AMEND.

Defendant's demurrer to the second cause of action for quiet title is OVERRULED.

SO ORDERED.

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Calendar Lines 2-3

Hearing on Demurrer and Motion to Strike

Case Name: *Evershine I, L.P. v. Com Tam Thien Huong et al.*

Case No.: 26CV484278

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF SANTA CLARA**

Defendants, Com Tam Thien Huong II (“Huong II”), Hien Chung Nguyen (“Nguyen”) and Lin Sau Su (“Su”) (collectively, “Moving Defendants”) demur to each cause of action in plaintiff Evershine I, L.P.’s (“Plaintiff”) complaint on the ground the claims fail to state facts sufficient to constitute a cause of action. (Notice of Demurrer (“Demurrer”) at p. 2:4-13 [filed: April 8, 2026].) Moving Defendants additionally move to strike portions of the complaint. (Notice of Motion to Strike (“Motion”) at pp. 2-3 [filed: April 8, 2026].)

The motions came on for hearing on September 18, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, including all authorities submitted by each party, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows:

Factual and Procedural Background

Plaintiff initiated this action against defendants Com Tam Thien Huong dba Pho Thien Huong (“Huong”); Nguyen; Su; Pho Thien Huong Corporation (“Huong Corp.”); Trung Steven H. Ngo (“Ngo”); and Huong II (collectively, “defendants”). According to the allegations of the complaint, Plaintiff owns and leases commercial property (“Subject Property”) located in San Jose, California. (Complaint, ¶ 1.) Huong, Huong Corp., and Huong II were Tenants of the Subject Property. (Complaint, ¶ 10.) Nguyen and Su executed a personal guaranty of the Tenants’ lease obligations regarding the Subject Property. (Complaint, ¶¶ 3-4.)

On June 18, 2008, Plaintiff entered into a lease (“the Lease”) with Ket Van Huynh, dba Phu Sam Restaurant for commercial space located at the Subject Property. (Complaint, ¶ 16.) The Lease was for 4 years, from July 1, 2010 to June 30, 2014. (*Ibid.*; Ex. A.) On March 7, 2014, Plaintiff and Huong entered into the assignment of the Lease (“the Assignment”) and all rights under the Lease were assigned by Phu Sam Restaurant and assumed by Huong and effective from May 2014 to October 2019. (Complaint, ¶ 17; Ex. B.) Also on March 7, 2014, moving defendants Nguyen and Su entered into a Guaranty of Lease that unconditionally guaranteed the full performance of Huong’s obligations under the Lease. (Complaint, ¶ 18.)

On December 6, 2017, Ngo, Nguyen, Huong II submitted a lease proposal to Plaintiff to operate the sandwich business out of the Subject Property. (Complaint, ¶ 27.) After the Lease expired in October 2019, Tenants continued occupying the Subject Property on a month-to-month basis through May 2024 at a rate of \$13,507.80 per month, plus operating expenses, but did not pay any holdover rent. (Complaint, ¶ 28.) Despite lease proposals, Tenants refused to execute an amended lease with Plaintiff. (Complaint, ¶¶ 29, 30.)

On May 2, 2024, without any notice, permit, or consent, defendants conducted extensive demolition work at the Subject Property. (Complaint, ¶ 31.) On May 13, 2024, the landlord conducted an inspection of the Subject Property with Nguyen and documented the extensive damage caused by the unauthorized demolition. (Complaint, ¶ 32.) On May 17, 2024, Plaintiff’s counsel sent Tenants notice of breach of lease and a demand for rent payment and Tenants’ counsel responded with a demand that Plaintiff return a portion of the security deposit. (Complaint, ¶ 33; Ex. C.)